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JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.49128 of 2024

Muhammad Javaid Afzal

Versus

Office of the Governor, Punjab, Lahore & others

J U D G M E N T

Date of hearing: 16.06.2025.
Petitioner by: M/s. Syed Ghazanfar Hussain Kamran and
Qari Habib-ur-Rehman, Advocates.
Respondents by: M/s. Asma Hamid and Mustafa Khalid,
Advocates (for respondent No.3).
M/s. Zulfiqar Ali Shah and Muhammad Abu-
Bakar Attique, Advocates (for respondent
No.4).
Mr. Muhammad Saad Bin Ghazi, Assistant
Advocate General along with Muhammad
Hashim Khan, Law Officer.

MUHAMMAD SAJID MEHMOOD SETHI, J.:-

Through this constitutional petition, petitioner has challenged vires of orders dated 17.04.2023 & 25.07.2024, passed by respondents No.2 & 1, respectively, whereby pursuant to complaint filed by respondent No.3 under the Protection against Harassment of Women at the Workplace Act, 2010 (“**the Act of 2010**”), major penalty of *removal from service* was imposed upon the petitioner and his representation in this regard was rejected.

2. Brief facts of the case are that during respondent No.3’s posting as Parokar, Legal Cell, Faisalabad Development Authority, she moved a complaint against petitioner and respondent No.4 before Ombudsperson, Punjab under the Act of 2010 levelling certain allegations of sexual harassment at workplace, which resulted in imposition of major penalty of *removal from service* upon the petitioner and respondent No.4 vide decision dated 17.04.2023. Feeling

discontent, petitioner filed representation before the Governor, Punjab, which was rejected vide order dated 25.07.2024. Hence, instant petition.

3. Learned counsel for petitioner submits that no act of harassment of women at workplace was proved against the petitioner; nevertheless, a major penalty of *removal from service* has been imposed by respondent No.2 / Ombudsperson Punjab, Lahore, through the impugned order dated 17.04.2023. He further submits that the said order has been illegally upheld by respondent No.1 / Governor, Punjab. He maintains that respondent No.3 has levelled false and frivolous allegations against the petitioner and respondent No.4, during the course of cross-examination, suddenly sworn his affidavit and confessed the allegations levelled against him in the complaint with ulterior motive and *mala fide* intention in order to join hands with the complainant. He argues that major penalty cannot be awarded merely on the basis of bald and oral assertions of respondent No.3, in absence of any documentary evidence or proof of sexual harassment. He contends that, pursuant to the complaint of respondent No.3, an Inquiry Committee was constituted under Section 3 of the Act of 2010 within the Faisalabad Development Authority, which initiated proceedings in accordance with law. He further submits that Section 8 of the Act *ibid* unequivocally provides option to a party to prefer a complaint either to the Ombudsperson or the Inquiry Committee, therefore, keeping in view the doctrine of election, once a party has elected a particular forum for the redressal of their grievance, they cannot subsequently backtrack or resort to another forum merely to obtain a conflicting or favorable decision. Lastly, it is contended that the impugned orders have been passed without proper appreciation of the evidence available on record and are, therefore, unsustainable in the eyes of law. In support, he has relied upon Farzand Ali and another v. Khuda Bakhsh and others (PLD 2015 Supreme Court 187), Peshawar Electric Supply Company Ltd. v. Wafaqi Mohtasib (Ombudsman) Islamabad and others (PLD 2016 Supreme Court 940), Babar Hussain Shah and

another v. Mujeeb Ahmed Khan and another (2012 SCMR 1235), Nadia Naz v. The President of Islamic Republic of Pakistan and others (PLD 2021 Supreme Court 784), Messrs Pak Suzuki Motors Company Limited through Manager v. Faisal Jameel Butt and another (PLD 2023 Supreme Court 482), Chief Executive Officer NPGCL, GENCO-III, TPS Muzafargarh v. Khalid Umar Tariq Imran and others (2024 SCMR 518), Bahadur Khan v. Karim Gul and 4 others (PLD 2022 Balochistan 51) and Silver Star Insurance Company Limited, Lahore through Chief Executive v. Messrs Kamal Pipes Industries, Lahore and another (2023 CLD 1342).

4. Contrarily, learned counsel for respondent No.3 defends the impugned decisions by contending that the penalty imposed upon the petitioner is commensurate with the level of harassment inflicted unrelentingly by the petitioner, which established a pattern of offensive conduct and further exacerbated by his retaliatory counter-blast complaints, murderous threats and intimidating conduct, as supported by the witnesses produced by respondent No.3 along with deposition of co-accused Sannan Hussain. She adds that the Hon'ble Supreme Court, in various judgments, has also awarded compensation in the cases involving moral turpitude and harassment for creating a safe working environment for women and for fulfilling the objectives of the Act of 2010. She further submits that due process has been followed while passing impugned decisions, thus, same are liable to be upheld. In support, she has referred to Mushtaq Ahmed and another v. The State (2007 SCMR 473), Uzma Naveed Chaudhary and others v. Federation of Pakistan and others (PLD 2022 Supreme Court 783), Nadia Naz and another v. The President of Islamic Republic of Pakistan, Islamabad and others (PLD 2023 Supreme Court 588) and Imran Amir and another v. Mst. Ismat Bibi and another [2023 PLC (C.S.) 553].

5. Arguments heard. Available record perused.

6. The record reflects that the primary allegations levelled by respondent No.3, Mst. Roohi Qamar, against the petitioner, Javed

Afzal (serving as Naib Qasid, Legal Cell, Faisalabad Development Authority), and respondent No.4/co-accused, Sannan Hussain (serving as Parokar, Legal Cell, Faisalabad Development Authority), pertain to repeated instances of misconduct. It has been alleged that both individuals habitually misbehaved with her and used filthy, offensive, and objectionable language. Respondent No.3 further alleges that on one occasion, respondent No.4, taking advantage of her being alone, inappropriately touched her. Additionally, it is asserted that the petitioner, in collusion with respondent No.4, made videos and photographs of her and displayed the same before colleagues, accompanied by objectionable comments and remarks. It is also alleged that both indulged in anti-social conduct and engaged in unethical gossip within the workplace. It is further alleged that the petitioner, in collusion with respondent No.4, followed respondent No.3 on a motorbike, hurled abuses at her, and threatened her by displaying weapon, which caused her severe mental distress and anxiety.

Upon respondent No.3's complaint, the Ombudsperson, Punjab, after recording evidence and hearing arguments of both sides, proceeded to impose major penalty of *removal from service* upon the petitioner along with co-accused / respondent No.4 vide decision dated 17.04.2023, which was kept intact by the Governor, Punjab vide decision dated 25.07.2024.

7. During the course of the proceedings, petitioner's co-accused, namely Sannan Hussain (respondent No.4), submitted a sworn affidavit in which he admitted that he along with the petitioner (under the influence of petitioner), harassed respondent No.3. This admission significantly undermined the petitioner's case. Furthermore, during cross-examination, the co-accused reiterated that he had harassed respondent No.3 at the petitioner's behest. Notably, the petitioner neither filed any counter-affidavit to rebut these allegations nor specifically denied them. He also failed to put forth any questions to the co-accused during cross-examination that could have challenged or

discredited the veracity of these claims. It is a well-settled principle of law that the absence of a specific denial amounts to an admission. Reliance is placed upon Ghulam Rasool through L.Rs. and others v. Muhammad Hussain and others (PLD 2011 Supreme Court 119) and Ghulam Rasool v. Abdul Ghafoor and 8 others (2017 CLC 1711).

8. In the present case, the learned forums below observed that the complainant was inappropriately touched and blatantly recorded on video. The accused was captured on CCTV footage pointing his mobile phone camera at the complainant – pictorial evidence that was duly produced before the Ombudsperson and corroborated by the complainant's witness. Furthermore, the accused repeatedly harassed respondent No.3, whose account was supported by two witnesses: Khalid Pervez, a friend of respondent No.3's husband, and Muhammad Akram, acting District Attorney and former Deputy Director (Legal) at the Faisalabad Development Authority. Accordingly, the findings of both the Ombudsperson and the Governor are grounded in solid evidence and were reached by applying the standard of the balance of probabilities in a judicious and fair manner, leaving no room for interference. In any event, it is a well-settled principle of law that the determination of the quantum of punishment falls within the exclusive domain of the competent authority, and judicial interference is not warranted.

9. Based on the repeated acts of offensive conduct and incidents of harassment detailed by the complainant and corroborated by witnesses – none of whom were confronted or cross-examined by the accused – the allegations stand proved. The penalty imposed is proportionate to the severity of the sustained harassment perpetrated by the petitioner, which established a clear pattern of offensive behavior. This was further aggravated by his retaliatory counter-complaints, murderous threats, and intimidating conduct, all of which were supported by witness testimony given under oath.

10. In the instant case, Section 8 of the Act of 2010 provides that the complainant, respondent No.3, may file a complaint with the

Ombudsperson – a right she exercised by filing the subject complaint. She clearly informed the Inquiry Committee that she would not avail herself of its forum as she had already approached the Ombudsperson (her statement dated 27.06.2022 is attached at page 6 of CMA 3/25 filed by respondent No.3/complainant). In this regard, respondent No.3 had filed at least three complaints against the petitioner with the Faisalabad Development Authority between 25.01.2022 and 17.02.2022, reflecting the petitioner's persistent harassment of respondent No.3 and compelling her to lodge repeated complaints, but in vain. Ultimately, she sought relief from the Ombudsperson, Punjab, where the petitioner participated in the proceedings, submitted his written defense, and produced evidence. The petitioner's actions were found to be not only overtly sexual but also threatening, intimidating, and demeaning.

11. The Ombudsperson, exercising the powers vested under Sections 4(4) read with Sections 8 and 10 of the Act of 2010, as well as Rule 10 of the Protection against Harassment of Women at the Workplace Rules, 2013, in accordance with law and procedure, after hearing both parties and allowing them ample opportunity to cross-examine each other, found on the preponderance of evidence that the petitioner's acts of harassment were established. Consequently, she rightly imposed the major penalty of *removal from service* upon the petitioner. This decision has since been upheld by the Governor of Punjab.

12. It is now judicially settled that the President and the Governor are designated as the final appellate forums to decide representations against decisions of the Ombudsperson. In judgment reported as Raja Tanveer Safdar v. Mrs. Tehmina Yasmeen and others (PLD 2024 Supreme Court 795), the Hon'ble Supreme Court authoritatively held that the legislature, intended to create a complete statutory mechanism, thereby excluding the invocation of constitutional jurisdiction under Article 199 in the ordinary course, except where the decision is shown to be *coram non judice*, *mala fides*, or without lawful authority. The Court emphasized that the decision of the Governor / President attains

finality and cannot be subjected to judicial review merely on factual reappraisal.

This position was reaffirmed in Muhammad Din v. Province of Punjab through Secretary, Population Welfare, Lahore & others [2025 SCP 41 (Supreme Court Website)] where the Hon'ble Supreme Court upheld the Governor Punjab's decision rejecting the petitioner's representation. The Court dismissed the constitutional petition as no jurisdictional defect or constitutional violation was established. Similarly, in the case of Uzma Naveed Chaudhary supra, the Hon'ble Apex Court stressed the importance of maintaining the integrity of statutory mechanisms under the Act of 2010 and discouraged routine interference by constitutional Courts in matters where the statutory forum has been exhausted. Therefore, once the Governor, under the Act of 2010, has decided the representation, the remedy before the constitutional Court is not in the nature of a second appeal, and judicial review can only be exercised on well-established grounds such as *coram non judice* acts, denial of due process, *mala fides*, or violation of fundamental rights. In this context, it is instructive to refer to Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO to Chief Justice and others (2014 SCMR 122), wherein the Hon'ble Supreme Court held that constitutional jurisdiction under Article 199 cannot be invoked in matters where an adequate and efficacious statutory remedy exists, particularly when the statute has designated a specialized forum for adjudication. Similarly, in judgment reported as Qazi Zaheer Ahmad v. Federal Ombudsman Secretariat for Protection Against Harassment at Workplace, Islamabad and 2 others [2021 PLC (C.S.) 839], the Islamabad High Court reaffirmed that the Protection Against Harassment of Women at the Workplace Act, 2010, read with Section 18 of the Federal Ombudsman Institutional Reforms Act, 2013, provides a specialized mechanism for redressal of grievances, and constitutional Courts ought not to interfere unless the proceedings suffer from jurisdictional defects, *mala fides*, or violate fundamental rights under Article 10-A of the Constitution. These decisions reinforce

the principle that the Ombudsperson, vested with exclusive jurisdiction under the Act of 2010, remains the competent authority to adjudicate harassment claims. Therefore, the impugned proceedings and orders, having been passed by the competent forum after affording due process to the petitioner, do not warrant interference by this Court in exercise of its extraordinary constitutional jurisdiction.

13. The Constitution of the Islamic Republic of Pakistan, 1973, enshrines the dignity of person as an inviolable right under Article 14, which lies at the core of all civilized legal systems. The Protection against Harassment of Women at the Workplace Act, 2010, was specifically enacted to uphold this constitutional guarantee within professional settings by ensuring a safe and respectful environment for all employees. In Muhammad Din's case supra, the Hon'ble Supreme Court reaffirmed that acts of harassment are not merely disciplinary infractions but direct violations of the constitutionally protected dignity and mental integrity of the individual. Similarly, in the case of Uzma Naveed Chaudhry supra, the Hon'ble Apex Court emphasized that protecting women from harassment is essential not only for the enforcement of workplace ethics but for the realization of constitutional safeguards against indignity, abuse, and gendered power imbalances. The findings of the forums below, in the present case, are thus fully consistent with the broader constitutional vision of dignity, equality, and protection from harassment. Judicial interference with such well-reasoned findings would amount to undermining a protective framework designed to uphold constitutional rights.

14. It is also noteworthy that the decisions dated 17.04.2023 and 25.07.2024 have been finally implemented, and the petitioner was removed from service by order dated 24.08.2024. Against this order, the petitioner sought legal remedy before the learned Labour Court under Section 33 of the Punjab Industrial Relations Act, 2010, on 16.09.2024 (a copy of which has been placed on record before this Hon'ble Court via CM No. 7/2024). The said order of removal has not been challenged before this Court. Accordingly, the petitioner has

elected the Labour Court as the appropriate forum to contest his *removal from service* on merits and cannot pursue parallel remedies in two forums simultaneously. Reliance is placed upon A.R. Khan v. P. N. Boga through Legal Heir (PLD 1987 Supreme Court 107), Trading Corporation of Pakistan v. Devan Sugar Mills Limited and others (PLD 2018 Supreme Court 828) and Mir Mujib-ur-Rehman Muhammad Hassani v. Returning Officer, PB-41 Washuk and others (PLD 2020 Supreme Court 718).

15. It is well established that, in the exercise of its writ jurisdiction, this Hon'ble Court's power of judicial review over decisions of competent authorities is confined to narrow grounds – specifically, whether the impugned decisions suffer from a clear miscarriage of justice, arbitrariness, or error of law. Absent such grounds, there is no justification for the exercise of discretionary jurisdiction to substitute the judgment of the competent authorities. This high threshold is imposed to ensure the smooth and effective administration of justice by the forums statutorily empowered to adjudicate the matter. Reliance is placed upon the judgment reported as (PLD 1964 Supreme Court 829).

16. Learned counsel for the petitioner has failed to point out any illegality or legal infirmity in the impugned concurrent decisions; therefore, no interference is warranted. Furthermore, the case law relied upon by learned counsel is distinguishable and, consequently, not applicable to the present matter.

17. Resultantly, instant petition, being devoid of any merits, is hereby **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

Approved for reporting.

Judge